

25NWLC36722 25NWLC36722

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-08-28

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25NWLC36722: BANK OF AMERICA, N.A. vs LISSET MARTINEZ OCAMPO

Tentative Ruling:

The Court has read and reviewed the moving papers filed by Defendant Lisset Martinez ("Defendant"). This Motion was initially set for hearing on July 31, 2026. Since it was unclear whether Defendant's Motion to Vacate Judgment ("Motion") had been served on Plaintiff Bank of America, N.A. ("Plaintiff"), the Court continued the Motion to August 28, 2026. The Court ordered Plaintiff to serve her Motion on Plaintiff and file proof of service.

On July 31, 2026, Defendant filed Proof of Service of the Motion on Plaintiff. No opposition has been filed by Plaintiff.

The Court notes that Default was entered by the Clerk on January 7, 2026. The Court notes that Default Judgment was entered by the Clerk on January 9, 2026.

Defendant's Motion to Vacate Judgment was filed on July 8, 2026.

The Court notes that Proof of Service of Summons by a registered process server by substituted service was filed with the Court on November 14, 2025 creating a presumption of service under Evidence Code section 647. The proof service states that the Summons and Complaint was served on Alvero Martinez who identified himself as Defendant's parent. Defendant does not provide any facts to challenge service but states that she did have not actual notice of this action until July 6, 2026 when she made her "appearance at the Norwalk Courthouse on the specified court date July 6, 2026." The Court notes that on June 27, 2025, it issued an Order to Show Cause Hearing/Case Management Review stated that Defendant was ordered to appear on July 6, 2026.

The Court does not find that Defendant has rebutted the presumption of valid service. Nonetheless, pursuant to Code of Civil Procedure § 473(b), "[t]he court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." Here, Defendant has stated that "she was not aware that [she] was to respond to the original complaint within the 30 day window required by law." She also stated that she did not know that the default judgment had been entered until she came to court on July 6, 2026 as ordered by the Court. As a result, Defendant "mistakenly believed" that she had until that time to respond to the Complaint and could do so by appearing in Court. Defendant filed this motion within the six-month window allowed by Code of Civil Procedure § 473(b).

Therefore, pursuant to Code of Civil Procedure § 473(b), and in the interests of justice, Defendant's Motion To Vacate Judgment is GRANTED.

Defendant is granted 30 days leave to file a responsive pleading.

The Court sets a further OSC Re Status of Responsive Pleading on May 28, 2027 at 8:30 a.m. in Department Y of the Norwalk Courthouse.

Clerk to give notice.